

NON-DISCLOSURE AGREEMENT

THIS AGREEMENT (hereinafter referred to as the "Agreement") made effective this _____ of 2026 by and between Sierra Support Centre Pvt Ltd., (hereinafter referred to as "Sierra"), with its principal place of business at Shri Parvathy Tech Park, No 4 & 5, Brooke bond Colony, Krishnaswamy Road, R.S. Puram, Coimbatore –641002, and _____, a _____ corporation, (hereinafter referred to as "Subcontractor"), having its principal place of business at _____ each or both of which shall also hereinafter be referred to as the "Party" or "Parties," respectively.

WHEREAS, the Parties represent that they each possess or may in the future possess certain technical, business, financial and other information which it considers proprietary to it; and

WHEREAS, it is recognized that, in order to consider business opportunities that may be of interest to the Parties and in connection with any current or future contractual relationship between the Parties, it may be both necessary and desirable that the Parties exchange the above-described proprietary information.

NOW, THEREFORE, in consideration of these premises, and of the mutual promises and covenants contained herein, the Parties hereto agree as follows:

1. That during the term of this Agreement, the Parties hereto may exchange ideas and concepts, as well as technical, financial, strategic, and operational information and other data which is considered by the disclosing Party to be proprietary. In order for such information and data to be subject to this Agreement (hereinafter 'Proprietary Information'), it shall either be: (i) identified in writing at the time of the disclosure by an appropriate legend, marking, stamp or other positive written identification or (ii) identified as proprietary to the receiving Party orally at the time of disclosure and in writing within fifteen (15) calendar days after such disclosure.
2. Notwithstanding the above requirement for marking or other identification of Proprietary information, that all drafts, revisions, and final documents that, in whole or in part, comprise or include proposals, proposal information, financial data or strategic plans of the parties shall be deemed 'Proprietary Information' and handled as such, without the requirement of marking or other form of identification.
3. During the term of this agreement and for a period of Two (2) years following the termination or expiration of this agreement, the Subcontractor will not directly or indirectly, through any employee, agent, or otherwise, and will not permit any of its agents to solicit, initiate or encourage, any offers or proposals to the introduced party. The restrictions herewith shall not apply to any clients or customers to whom the Subcontractor is already providing services at the time of execution of this agreement or during the term of this agreement (the "Existing Clients"). The Subcontractor may continue to provide services to such Existing Clients, provided such activities do not conflict with any other provisions of this Agreement.
4. That neither Party has an obligation to supply Proprietary Information hereunder, nor shall anything in this Agreement be deemed to grant a license directly or by implication, estoppel or otherwise, whether under any copyright, patent, patent application or otherwise, to any Proprietary Information disclosed pursuant to this Agreement.
5. That the exclusive points of contact for the Parties with respect to the exchange of Proprietary Information are as follows:

If to Hrify Technologies

Address: _____

Name: _____
Title: _____
Phone: _____

If to Sierra

Address: Shri Parvathy Tech Park, No4&5
Krishnaswamy Road, R.S.
Puram, Coimbatore –641002
Name: Porchelil Pandiyan
Title: Sr HR Manager
Phone: 9042322046

Fax:

Fax:

E-mail:

E-mail:

hr.cbe@sierradigitalinc.com

Either Party may change its point of contact designation by written notice to the other.

6. That such Proprietary Information delivered by the disclosing Party to the receiving Party shall be for the purpose of discussions regarding upcoming business opportunities.
Parties agree to not assert any claim of title or ownership to the Proprietary Information or any portion thereof. If Proprietary Information consists of computer software disclosed in object code form, receiving Party shall not, and shall not permit any other party, to reverse engineer, reverse compile, or disassemble such object code, or take any other steps to derive a source code equivalent thereof.
7. That for a period of Two (2) years from the date of the last disclosure of the Proprietary Information hereunder, the receiving Party shall safeguard and hold in strict confidence such Proprietary Information and prevent disclosure thereof to third parties, without the written consent of the disclosing Party. The receiving Party shall further restrict disclosure of such Proprietary Information to only those employees who have a need to know and who have executed a nondisclosure agreement with terms substantially similar to this Agreement. During the abovementioned five-year period, no other use of the Proprietary Information is granted without the written consent of the disclosing Party. In the event the disclosing Party gives its approval for the receiving Party to disclose Proprietary information to the U.S. Government, the receiving Party shall ensure that, to the extent specifically requested by the disclosing Party, all such disclosures are marked with appropriate legends, as required or permitted under Government regulations, in order to preserve the proprietary nature of the information and the disclosing Party's rights therein.
8. That the obligations with respect to disclosing and using Proprietary Information, as set forth in Paragraph 6 of this Agreement, are not applicable if the same is:
 - (a) shown by the receiving Party to be in the public domain at the time of receipt or that it came into the public domain thereafter through no act of the receiving Party in breach of this Agreement or of any other party in breach of any other obligation of confidentiality owing to the disclosing Party, or
 - (b) contained in written record in the receiving Party's files prior to the date of its receipt from the disclosing Party, or
 - (c) disclosed or used with the prior written approval of the disclosing Party, or
 - (d) demonstrated in written record by the receiving Party to have been developed independently of disclosures made hereunder, or
 - (e) lawfully disclosed on an unrestricted basis to the receiving Party by a third party under conditions permitting such disclosure, or
 - (f) disclosed by the receiving Party in response to a legal mandate by order of a court or administrative body, after the receiving Party promptly notifies the disclosing Party and provides a reasonable opportunity to oppose such order.
9. This Agreement is made effective as of the date set forth above and may thereafter be terminated by either Party upon the giving of thirty (30) days written notice to the other Party of its intention to terminate. Upon termination of this Agreement and the written request of the Disclosing Party, the Receiving Party shall promptly return to the Disclosing Party all materials and copies containing the Proprietary Information.
10. That the Parties acknowledge that unauthorized disclosure, use or sale of the Proprietary Information, in whole or in part, or the disclosure, use or sale of any information or material created from, based upon or arising out of the Proprietary Information will give rise to irreparable injury to the disclosing Party inadequately compensable in damages. Accordingly,

the disclosing Party may seek or obtain injunctive relief against any such undertakings, in addition to all other legal remedies that may be available to it

11. The Parties agree that no export-controlled technical data with respect to this Agreement shall be released to any foreign person(s), to include foreign personnel working in the United States, in violation of any U.S. export laws, regulations, restrictions or embargoes, including, but not limited to the International Traffic in Arms Regulations and the Export Administration Act. The Parties shall assure that any export authorization required to fulfill its obligations under this Agreement is obtained and approved.

Parties make no representations or warranties, express or implied, as to the quality, accuracy and completeness of the information disclosed under this Agreement, and the disclosing Party shall have no liability whatsoever with respect to the use of or reliance upon the Proprietary Information by the receiving Party.

12. That this Nondisclosure Agreement shall not be construed as a teaming, joint venture or other such arrangement; rather, the Parties hereto expressly agree that this Agreement is for the purpose of protecting Proprietary Information only.
13. The rights and obligations set forth in Articles 6, 7, 8, 9 and 10 with respect to Proprietary Information supplied hereunder prior to termination of this Agreement, shall survive such termination.

The receiving Party agrees to destroy or return to the disclosing Party all copies of Proprietary information promptly upon the earlier of (i) disclosing Party's request at any time, or, (ii) expiration of the confidentiality period noted under Paragraph 6 of this Agreement, except that, unless the Parties expressly agree otherwise in writing, all software (whether in object code or source code form) shall be returned or destroyed ninety (90) days following its delivery to receiving Party.

14. Each provision of this Agreement is severable. If one provision is declared void, illegal or unenforceable, the remaining paragraphs shall retain their full force and effect.
15. This Agreement shall be governed by the laws of the State of Texas.
16. This Agreement contains the entire understanding between the Parties relative to the protection of Proprietary Information and supersedes all prior and collateral communications, reports, and agreements between the Parties in respect thereto. No change, modification, alteration, or addition to any provision hereof shall be binding unless in writing and signed by authorized representatives of both Parties.

SIGNATURE AND AUTHORIZATION

EACH PARTY REPRESENTS THAT IT HAS READ THIS ENTIRE DOCUMENT AND AGREES TO PERFORM IN ACCORDANCE WITH THE TERMS AND CONDITIONS CONTAINED HEREIN. EACH SIGNATORY TO THIS DOCUMENT WARRANTS BY AFFIXING HIS OR HER WRITTEN OR DIGITAL SIGNATURE BELOW THAT HE OR SHE IS DULY AUTHORIZED TO BIND THE PARTY WHOM SUCH SIGNATORY REPRESENTS.

E-COMMERCE TRANSACTIONS: The parties acknowledge that Sierra has automated certain documents by transmitting and receiving documents electronically in substitution for conventional paper-based documents. The following are examples of documents which may be transmitted. Non-disclosure Agreements, Teaming Agreements, Subcontracts, Subcontract Modifications, Task Orders and Task Order Modifications. The parties further acknowledge that such automated transactions are not rendered legally invalid or unenforceable solely by virtue of such transmission or reception.

Hrify Technologies Private Limited

Signature:

Name: _____
Title: _____
Address: _____

Phone: _____
E-mail: _____

Sierra Support Centre Pvt Ltd

Signature

Name: _____ Porchelil Pandiyan
Title: _____ Sr HR Manager
Address: _____ Shri Parvathy Tech Park, No4&5
_____ Krishnaswamy Road, R.S.
_____ Puram, Coimbatore –641002
Phone: _____ 9042322046
E-mail: _____ hr.cbe@sierradigitalinc.com
